

A railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any luggage unless a railway servant has booked the luggage and given a receipt therefore and in the case of luggage which is carried by the passenger in his charge, unless it is also proved that the loss, destruction, damage or deterioration was due to the negligence or misconduct on its part or on the part of any of its servants.

Comments

Section 100 deals with the responsibility of the railway administration for any loss, destruction, etc. of luggage.

101. Responsibility as a carrier of animals. – A railway administration shall not be responsible for any loss or destruction of or injuries to any animal carried by railway arising from fright or restiveness of the animal or from over – loading of wagons by the consignor.

Comment

Section 101 absolves the railway administration of its responsibility for any loss, destruction or injury to animal arising from fright or restiveness of the animal or from overloading of wagon by the consignor.

Comments

102. Exoneration from liability in certain cases. – Notwithstanding anything contained in the foregoing provisions of the chapter, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any consignment –

- (a) when such loss, destruction, damage, deterioration or non-delivery is due to the fact that a materially false description of the consignment is given in the statement delivered under section (1) of Sec. 66, or
- (b) Where a fraud has been practiced by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee; or
- (c) Where it is proved by the railway administration to have been caused by, or to have arisen from –
 - i. improper loading or unloading by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee;

- ii. riot, civil commotion, strike, lockout, stoppage or restraint of labour from whatever cause arising whether partial or general ; or
- (d) for any indirect or consequential loss or damage or for loss of particular market.

Comments

Section 102 provides for exoneration from liability of railway administration in cases specified therein.

Railway is liable for compensation for non-delivery – The Tribunal, therefore, rightly held that Sec. 77-B of the Old Act of 1890 is not applicable in case of non-delivery and hence the railway is liable for non-delivery.

The Railway, however, was exonerated for partial shortage in 5 bales.

103. Extent of monetary liability in respect of any consignment – (1)
Where any consignment is entrusted to a railway administration for carriage by railway and the value of such consignment has not been declared as required under sub-section(2) by the consignor, the amount of liability of the railway administration for the loss, destruction, damage, deterioration or non-delivery of the consignment shall in no case exceed such amount calculated with reference to the weight of the consignment as may be prescribed, and where such consignment consists of an animal, the liability shall not be exceed such amount as may be prescribed.

(2) Notwithstanding anything contained in sub-section(1), where the consignor declares the value of any consignment at the time of its entrustment to a railway administration for carriage by railway, and pays such percentage charge as may be prescribed on so much of the value of such consignment as is in excess of the liability of the railway administration as calculated or specified as the case may be, under sub-section (1), the liability of the railway administration for the loss, destruction, damage, deterioration or non-delivery of such consignment shall not exceed the value so declared.

- (1) The Central Government may from time to time, by notification, direct that such goods as may be specified in the notification shall not be accepted for carriage by railway unless the value of such goods is declared and percentage charge is paid as required under sub-section(2).

Comments

Section 103 lays down the extent of monetary liability of the railway in respect of loss, destruction, damage, etc. of a consignment.